

26NNCV02019 26NNCV02019

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-25

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Case Number: 26NNCV02019 Hearing Date: August 25, 2026 Dept: B

Hon. Victor Avila, Dept B

Default Judgment

OSC Hearing Date: 8/25/26

CASE NO.: 26NNCV02019

CASE NAME: JPMorgan Chase Bank, N.A. v. CK
Logistics, Inc., et al.

Moving Party: Plaintiff JPMorgan Chase
Bank, N.A.

Defaulting Party: Defendants CK Logistics,
Inc., and Raffi Apo Khamisian

Ruling: GRANT

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is breach of contract action. On March 13, 2026, plaintiff JPMorgan Chase Bank, N.A. filed a Complaint against defendants CK Logistics, Inc., and Raffi Apo Khamisian (collectively, Defendants) alleging breach of contract and breach of implied covenant of good faith and fair dealing.

On June 30, 2026, default was entered against Defendants.

On August 6, 2026, Plaintiffs filed request for default judgment against Defendants.

TENTATIVE

Plaintiff has complied with requirements outlined below. The request for default judgment submitted on August 6, 2026, is GRANTED but reduced for the following reasons:

.

Plaintiff

justifies \$75,250.00 sought in principal damages pursuant to contract between the parties and the account transaction history. (Henderson Decl., ¶¶ 3, 5; Exh. A; Exh. C.)

.

Plaintiff requests

late fees and costs as special damages in the amount of \$356.15. (CIV-100, ¶ 2(b).) Exhibit C is offered to support alleged late fees and loan costs; however, the fees listed in Exhibit C and CIV-100 form do not match and no explanation is provided for the inconsistency. (Henderson Decl., ¶ 5, Exh. C.) Thus, adequate support is not provided, and Plaintiff will not be awarded special damages pursuant to California Rules of Court, rule 3.1800(a)(2).

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Although the

Complaint prays for interest, Plaintiff has not provided the necessary interest computations. Thus, Plaintiff will not be awarded interest pursuant to California Rules of Court, rule 3.1800 subdivision (a)(3).

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Plaintiff waives

attorney's fees and costs on the JUD-100 form. Thus, Plaintiff will not be awarded attorney's fees or costs.

Accordingly, Court judgment is entered in the amount of \$75,250.00.

CHECKLIST

1.

Service Of Summons And Complaint; And
Entry Of Default

a.

Personal
Service (C.C.P. §415.10)

¿ Yes ¿

No

i. Address of
Service:

b.

Substitute
Service (C.C.P. §415.20)

¿

Yes ¿ No

i. Address(s) of
Service:

1.

CK Logistics,
Inc. – 7134 W Keats Ave., Fresno, CA 93723

a.

Is there a
showing of due diligence? [Three
prior attempts]

☐ Yes ☐ No

2.

Raffi Apo
Khamisian – 1464 Royal Blvd., Glendale, CA 91207

a.

Is there a
showing of due diligence? [Three
prior attempts]

☐ Yes ☐ No

c.

Publication (C.C.P. §415.50 / Gov. Code § 6064)

☐ Yes ☐ No

i. Is there an order approving service by publication?

☐ Yes ☐ No

ii. Is there a showing of due diligence?

[Declaration regarding availability of Defendant]

☐ Yes ☐ No

d.

Mail (C.C.P. §415.30 / §415.40)

☐ Yes ☐ No

i. Address(s) of Service:

Defendant(s)

Date of filing of POS of summons & complaint

POS reflects service on what date

Date default entered

CK Logistics, Inc.

4/16/26

4/12/26

6/30/26

Raffi Apo Khamisian

5/21/26

5/19/26

6/30/26

2. Is

Entry of Default Void?

Did defendant(s) appear (answer or file other response) before default was entered?

[If

"Yes," default is void. CCP 585(a)]

¿ Yes ¿ No

Has plaintiff amended the complaint after default was entered?

[If

"Yes," the filing of the amended complaint generally reopens the default, which means that plaintiff will have to serve the amended summons and amended complaint on all defendants via personal service, substitute service, etc., wait for the period to respond to lapse, and then request entry of default on the amended complaint.]

¿ Yes ¿ No

In a personal injury or wrongful death case and/or plaintiff seeks punitive damages, did plaintiff serve statement of damages before default was entered?

[If

"No," default is void. CCP §473(d) / CCP §425.11(c)-(d); For personal injury cases, Plaintiff must submit a copy of the Statement of Damages served on Defendant. CRC 3.250(a)(20) but failure to do so does not void default.]

¿ Yes ¿

No ¿

Unclear ¿ Inapplicable (breach of contract action and no punitive damages sought)

Did

Plaintiff File All Required Forms?

Did

plaintiff file a form CIV-100 to request court judgment?

[If "No," deny, use of CIV-100 is mandatory. CRC 3.1800(a)]

¿ Yes ¿

No

On

the CIV-100, did plaintiff complete item 2?

[If "No," deny, use of CIV-100,

item 2 is mandatory. CRC 3.1800(a)]

¿ Yes ¿

No

If

defendant is an individual, did plaintiff complete declaration of nonmilitary status (CIV-100, item 8)?

[If “No,” deny. This is required per CRC 3.1800(a)(5)]

¿ Yes ¿

No

Has

plaintiff submitted a proposed judgment (ideally on form JUD-100)?

[If “No,” deny. This is required per CRC 3.1800(a)(6)]

¿ Yes

¿

No

Summary of case provided – or other declaration provided?

[Brief

Summary of Case. (CRC 3.1800(a)(1))]

¿ Yes ¿ No

Other Requirements

Has plaintiff dismissed all other parties (including unnamed DOEs)?

[If

“No,” deny. This is required per CRC 3.1800(a)(7)]

¿ Yes ¿ No

NAME OF DEFENDANT

DATE OF DISMISSAL

DOES 1 through 20, inclusive

8/6/26

Is there pending motion to vacate default?

[Pause,
court has discretion whether to proceed; inquire judicial officer]

¿ Yes ¿ No

Principal

Damages

Has plaintiff filed a declaration under
penalty of perjury or other admissible evidence in support of amount of
damages sought?

[If
"No," deny. This is required per CRC 3.1800(a)(2)]

¿

Yes ¿

No

i. Declaration of Steven M. Henderson, attorney for
Plaintiff

Is the declaration by a percipient witness
with personal knowledge of the damages suffered or by an authorized
custodian?

[If "No," deny. A defaulting

defendant admits only the well-pled facts concerning liability, not damages.

Plaintiff must still introduce admissible prima facie evidence of damages. (Johnson v. Stanhiser (1999) 72 Cal.App.4th 357, 361.)

¿ Yes ¿ No

i. Declaration of Steven M. Henderson, attorney for
Plaintiff

Does the default judgment properly seek
a dollar amount that is equal to or less than the
amount sought in the complaint or in the statement of damages? (JUD-100)?

[Note: the "request for court
judgment" amount is just the principal amount sought in default and is not the
total amount which would include prejudgment interest, attorneys' fees, and
costs. The total amount, considering these extra costs, may properly exceed the
demand of the complaint.]

¿ Yes ¿ No

Amount of principal damages in the statement of damages CIV-050 (total
of all categories in items 1 and 2)

N/A

Amount of principal damages in complaint EXCLUDING attorney fees,
interest, and costs (item 2(a), NOT 2(f))

\$80,231.57

Amount of principal damages in proposed judgment JUD-100 EXCLUDING
attorney fees, interest, and costs (item 6(a)(1), NOT 6(a)(6))

\$75,250.00

Prejudgment

Interest

Does complaint pray for interest?

[If

"No," do not award interest]

¿ Yes ¿ No

b.

If complaint prays for interest, is
an interest calculation provided?

[If "No," do not award interest; CA Rules of Ct.,
rule 3.1800 subdivision (a)(3).]

¿

Yes ¿ No ¿ Inapplicable

Attorney's

Fees

Does complaint allege entitlement to
attorney's fees?

¿ Yes ¿ No

b. Are requested attorney's fees permitted pursuant to
local rules?

[LASC Local Rule 3.214 subdivision (a).]

¿ Yes ¿ No (Waived in CIV-100)

Costs

Does complaint pray for costs? ¿

Yes ¿

No

i. Has plaintiff provided a memorandum of costs
properly verified on CIV-100, item 7?

[If

“No,” you may grant default judgment but WITHOUT COSTS; Use of CIV-100, item 7, is mandatory for an award of costs. Cal Rules of Ct 3.1800(a).]

¿ Yes ¿ No

b.

Are all the requested costs allowable under CCP 1033.5?

[If “No,” grant only allowable costs and deny as to nonconforming costs. (CCP §1033.5)]

¿ Yes ¿ No ¿ Inapplicable

Punitive
Damages

Does complaint pray for punitive damages?

[If

“No,” do not award punitive damages.]

¿ Yes

¿ No

ORDER

Plaintiff's Motion for Default Judgment
against Defendants CK Logistics, Inc., and Raffi Apo Khamisian is GRANTED.

Defendants' Answer
filed after entry of default is deemed void under Code of Civil Procedure
section 585.

MOVING PARTY is to give notice.